Opening Statement: Accountability With Care

Motion: *The minimum age of criminal responsibility in the Philippines should remain unchanged*
Side: Affirmative | Speaker: 1st Main Presenter | Stand: Change it — lower the MACR from 15 to 12, with a discernment test
Target length: about 4 to 5 minutes (approx. 820 words spoken)

THE SCRIPT

[THE BANG] — open cold, no greeting yet. Pause after each sentence.

Under Philippine law today, a fourteen-year-old who plans a murder, carries it out, and hides the evidence is not called an offender. Under Section 20-A of Republic Act 10630, that child is "deemed a *neglected child*."

The family of the victim receives no criminal finding of responsibility. No verdict that says: *this was wrong, and you did it.* Only one word: exempt. Today we ask this house: is that justice — for the victim, for society, or even for the child?

[GREETING AND STAND]

A pleasant [morning / afternoon] to the honorable adjudicators, to our worthy opponents, and to everyone present. I am _____, first main speaker of the Affirmative side, and we stand firmly: the minimum age of criminal responsibility in the Philippines **should be changed.**

[DEFINITIONS AND OUR MODEL] — state the model clearly so no one can misrepresent it.

The minimum age of criminal responsibility is the age below which a child cannot be held criminally liable. Section 6 of Republic Act 9344, as amended by RA 10630, fixes it at fifteen. Our proposal is specific:

- Lower the minimum age from **15 to 12**.
- A child from 12 to below 15 is liable **only if the prosecution proves discernment** — that the child understood the act was wrong and its consequences. This is the same test our law already applies to children from 15 to below 18.
- **No adult jails.** Children found responsible go to Bahay Pag-asa and youth facilities, with diversion, automatic suspension of sentence, and confidential records already provided by RA 9344 (Sections 23, 38, and 43).
- Section 20-C stays: adults who use children in crime still suffer the **maximum** penalty.

So this debate is not about putting children in prison. It is about whether a child who **knew** what he or she was doing can be **held responsible** for it — in a child-sensitive system.

[PILLAR 1: THE LAW]

First, the law. Article II, Section 5 of the 1987 Constitution declares that "the maintenance of peace and order, the protection of life, liberty, and property, and promotion of the general welfare are essential" to democracy. Article II, Section 11 says the State "values the dignity of every human person." Every person — and that includes the victim. Article XV, Section 3(2) protects children from "conditions prejudicial to their development." A system that never tells a child who

killed that the act was a crime is itself a condition prejudicial to that child's development.

Our proposal also respects our treaty duties. The UN Convention on the Rights of the Child, Article 40(3)(a), requires a minimum age but **does not fix a number.** The UN Beijing Rules, Rule 4.1, require that the age not be set too low, considering maturity — and our discernment test examines maturity child by child. Our own legal history is not foreign to this: for decades, Article 12 of the Revised Penal Code used a discernment test for children from nine to fifteen. We propose a higher floor than that, and stronger safeguards.

[PILLAR 2: THE MORAL GROUND]

Second, the moral ground. Moral responsibility rests on **knowledge** and **freedom**. Where a child has both, responsibility follows. To say that no fourteen-year-old can ever be responsible — no matter what the evidence shows about that child — is not compassion; it is a refusal to look. Holding a person accountable treats that person as a moral agent, capable of understanding wrong and capable of change. That is respect for dignity, not a denial of it.

Justice also has two sides. The victim — very often a child too — has a right to have the wrong named for what it is. And restorative justice, the very approach our juvenile law embraces, begins with one step: **acknowledging the wrong.** A system that cannot find responsibility cannot begin restoration.

[PILLAR 3: THE INCENTIVE PROBLEM]

Third, consider the incentives. When the law guarantees that every child under fifteen is exempt, anyone who wants to commit a crime without consequences has a reason to use a child. Section 20-C punishes the adult — but only if the adult is caught and identified. Our model keeps Section 20-C **and** removes the guarantee of exemption, so a child can no longer be used as a shield. Meanwhile, Juvenile Justice and Welfare Council figures show children-in-conflict-with-the-law cases reached about 5,698 by June 2025, already exceeding all of 2024. We do not claim the law caused this rise. We claim the present framework is not preventing it, and reform is warranted.

[PRE-EMPTIVE FAIRNESS] — calm, respectful.

Our worthy opponents will rightly remind us that children's brains are still developing. We agree — which is exactly why we propose a discernment test, reduced dispositions, and rehabilitation, not adult punishment. And note: the brains of sixteen- and seventeen-year-olds are also still developing, yet our law already holds them responsible when discernment is proven. We simply ask that the same careful question be asked of a child from twelve.

[THE GRAVE IMPACT] — build volume, then drop to a firm, quiet finish.

So here is what is at stake. Keep fifteen unchanged, and we keep a law that tells every victim's family: the person who hurt your child may have known exactly what they were doing, but the State will never ask. We keep a guaranteed exemption that criminals can exploit. And we keep teaching a generation that protection from harm also means protection from consequences.

Children deserve protection. Victims deserve justice. And a child who knew right from wrong deserves to be treated as someone capable of doing right. That is not cruelty. That is how a just society raises its young.

Change the age. Keep the care. Restore the justice. Thank you.

FALLACY CHECK: WHAT THIS SCRIPT AVOIDS

Every claim in the script was checked against the common debate fallacies below.

Fallacy	Risk in this debate	How the script avoids it
Straw man	Saying the Negative "wants criminals to go free" or "doesn't care about victims."	Concedes the Negative's valid point (brain development) and states it fairly before answering.
False dilemma	"Either jail children or let them get away with it."	Proposes a middle model: discernment test + rehabilitation + no adult jails.
Appeal to fear	Exaggerating a juvenile "crime wave."	Uses one sourced JJWC figure and says plainly what it does and does not prove.
Post hoc / false cause	"RA 9344 caused crime to rise."	Explicitly states: "We do not claim the law caused this rise."
Hasty generalization	"All teenagers today are dangerous."	The Bang describes the legal treatment of a type of case, not a claim about all children; the discernment test is individual.
Bandwagon	"Many countries use 12, so we should."	Does not rely on other countries; relies on the Constitution, the CRC's actual text, and Philippine legal history.
Appeal to authority	Citing an official or expert as the whole argument.	Each legal citation is followed by the reasoning that connects it to the motion.
Slippery slope	"If we don't act, children will run all the syndicates."	Argues a direct incentive (guaranteed exemption) without predicting a chain of disasters.
Appeal to emotion (alone)	A shocking case with no legal basis.	The Bang quotes the actual wording of Sec. 20-A ("deemed a neglected child").
Ad hominem	Attacking child-rights advocates or lawmakers.	Addresses arguments only; calls the other side "worthy opponents."

LEGAL AND MORAL BASIS (QUICK REFERENCE)

Source	Provision	Use it to prove
1987 Constitution	Art. II, Sec. 5: peace and order, protection of life, liberty, and property are essential to democracy.	The State has a duty to the public and to victims.
1987 Constitution	Art. II, Sec. 11: the State values the dignity of every human person.	Victims' dignity counts; accountability respects the offender's moral agency.
1987 Constitution	Art. XV, Sec. 3(2): protection of children from conditions prejudicial to their development.	Zero accountability is itself harmful to the child's development.
RA 9344 as amended by RA 10630	Sec. 6: MACR is 15; 15 to below 18 liable only with discernment.	The discernment test already exists in our law.
RA 10630	Sec. 20-A: a child above 12 up to 15 who commits serious crimes (e.g., murder, rape) is "deemed a neglected child" and placed in Bahay Pag-asa.	The Bang: the law labels a capable offender as a neglected child.
RA 10630	Sec. 20-C: adults who use children in crimes get the maximum period of the penalty.	Keep it; but it does not remove the incentive of guaranteed exemption.
RA 9344	Sec. 23 (diversion), Sec. 38 (automatic suspension of sentence), Sec. 43 (confidentiality of records).	Safeguards already exist; lowering the age does not mean adult punishment.
Revised Penal Code (original)	Art. 12: exempted children under 9; children 9 to 15 exempt unless they acted with discernment.	Discernment-based liability for young adolescents is part of Philippine legal tradition.
UN CRC (ratified 1990)	Art. 40(3)(a): states must set a minimum age; no specific number is fixed.	A MACR of 12 does not violate the treaty's text.
UN Beijing Rules	Rule 4.1: age should not be fixed too low, bearing in mind maturity.	The discernment test examines maturity case by case.
House Bill 8858 (18th Congress, 2019)	Proposed lowering the MACR to 12; passed the House.	Shows the proposal is a real, legislated model, not a hypothetical.
Moral principle	Responsibility follows knowledge and freedom; restorative justice begins with acknowledging the wrong.	A child who knew and chose can be held responsible, proportionately.

BE READY FOR THESE (honest weak spots)

• **CRC General Comment No. 24 (2019)** encourages a MACR of at least 14. Answer: General Comments are interpretive guidance, not treaty text; Art. 40(3)(a) fixes no age; and the Committee's own earlier General Comment No. 10 (2007) treated 12 as the minimum acceptable age. • **Bahay Pag-asa shortages.** Answer: implementation and reform are not alternatives; a responsibility-based system needs funded facilities either way. • Verify the latest JJWC / PNP-WCPC figures before the debate if adjudicators require citations.

DELIVERY NOTES

• Bang: no greeting first. Stress "*deemed a neglected child*" and pause on "**exempt**." • Read the model slowly; it protects you from straw-man attacks. • Grave Impact: rise through "protection from consequences," then slow down for "Change the age. Keep the care. Restore the justice." • If short on time, trim Pillar 3; never cut the model or the Grave Impact.